



JAMAICA CONSTABULARY FORCE
Constabulary Communications Network Media Policy

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POLICE/MEDIA POLICY

1. PURPOSE

The purpose of this order to establish the Police/Media Policy, describing procedures and responsibilities of the police for the supplying gathering and dissemination of public information, to the media.

2. DEFINITIONS

PUBLIC INFORMATION: This includes any information that may be of interest to the general public, procedures and other newsworthy information regarding the police, crime and is (a) not legally protected, (b) does not unduly interfere with the mission of the police, (c) does not infringe upon the rights of a defendant or (d) does not compromise the safety and privacy of members of the Force and its auxiliaries, victims, witnesses or others.

- a. **POLICE:** Any man or woman appointed by the state for the enforcement of the laws of Jamaica and charged with the responsibilities of preservation of the peace, protection of life and property and the prevention and detection of crime.
- b. **NEWS MEDIA REPRESENTATIVES:** Individuals directly employed by news agencies of the electronic and print media both local and overseas. This includes employees of radio, television, newspapers and magazines.

Freelance workers in the news media are to be regarded as other members of the general public unless properly identified as a member of the Press Association of Jamaica (PAJ) and/or assigned by the head of an accredited news media agency.

- c. **CONSTABULARY COMMUNICATIONS NETWORK (CCN):** The C.C.N. is the central source of information for news releases and responses to the news media, community organizations and public institutions.
- d. **The Executive Director C.C.N.:** The Executive Director shall be the commander of the C.C.N. and an official spokesperson for the Jamaica Constabulary Force. His responsibilities include: (a) coordinating and authorizing the release of information to the media, community organizations, public institutions and members of the public, (b) arranging and assisting at news conferences (c) Monitor the implementation of the Police Media Policy (d) Ensure that the policy is adhered.

3. POLICY STATEMENT

It is the policy of the police and the media to co-operate fully with each other in the gathering and dissemination of public information.

The news media serve as important conduits of information to the public, and has a responsibility to inform the public factually on matters relating to the activities of the police considered to be of public interest.

Accordingly, the news media are free to photograph and report on scenes of crime and other police-related incidents, unless the photographing and reporting of these incidents: (a) infringe on the rights of citizens, or (b) contaminate, damage or destroy evidence.

The Police have a lawful duty to investigate crimes and in the discharge of this duty, must protect the rights of citizens and preserve evidence at scenes of crime and other incidents under police investigation.

A. INFORMATION

Procedures and responsibilities for the Release of Information by the Police.

1. Authority to release public information, shall primarily be the responsibility of the following authorities.
 - a. The Commissioner of Police
 - b. Deputy Commissioner of Police
 - c. The Officer in charge of the C.C.N.
 - d. C.C.N. Information Liaison Officers
 - e. Individuals designated by a, b, or c above

Exceptions to the provisions at '1' above are:

- a. Area and Divisional officers may release information regarding activities exclusively within their geographical and operational purview.
- b. In the absence of the officer in charge of the C.C.N. or any C.C.N. personnel at the scene of any police activity, the senior police officer or sub-officer present shall, as soon as circumstances permit, provide a brief synopsis of the situation to the media.

- c. The C.C.N. official is the principal media liaison officer at the scene of crime of other incident. However, in his absence, the senior police officer or sub-officer present shall designate a member of the Force to liaise with the media.
- d. In the absence of a C.C.N. representative members of the Traffic Police and other members who attend the scene of traffic accidents, may at the earliest convenience respond to queries from the media at the scene.

A copy of any written information, poster of other literature prepared and distributed to the public shall be forwarded to the C.C.N. forthwith.

Members of the Force shall first notify the next of kin prior to releasing a deceased victim's name and address to the news media. However, if the next of kin has not been located after a reasonable length of time (4 hours), an information releasing authority may release such information if appropriate in the circumstances.

When information requested by the media is to be denied, the basis for the denial shall be fully and courteously explained eg. Where persons will be facing I.D. parade, names of witnesses and to protect the integrity of the investigation. The media have a responsibility to honour the confidentiality of the communication.

The C.C.N. shall disclose information to the media as promptly as circumstances permit. In order to encourage enterprising journalism, information specifically requested by a news media representative shall be released solely to that representative, unless other news media representative(s) ask for information on the same subject.

While specific queries of an exclusive nature will generally be respected, this cannot always be observed where public safety is threatened.

The provisions of this policy shall be applicable to all public information, including but not limited to statistical data, records, complaints and cases.

B. SCENES OF CRIME AND OTHER BARRICADE SITUATIONS

The police and the news media have their respective functions at a scene of crime or other activity.

For the police and news media to achieve their professional objectives, it is imperative that there exists the fullest understanding and co-operation between media representatives covering the event, and the police on duty at the scene.

The duties of the police at such scenes are obligatory under law and in their investigatory role are required to take action to preserve evidence, ensure public safety, and protect the integrity of the investigations.

The Force is not a public arbiter of good taste, hence restrictions of news media representatives by the police should be based only on the responsibilities and principles contained herein, and not to any individual view of a member of the Force and Auxiliaries, as to what constitutes an acceptable standard of journalism or news photography.

The police have no authority to invite the news media into private premises without the consent of the owner or person in charge of the premises.

News media representatives may not enter any area closed because of a menace to public health or safety. Note that it is not the responsibility of the police to provide for the safety of news media representatives who voluntarily choose to subject themselves to danger after due warning by the police or other appropriate authority; e.g. traveling to scenes of crime or proceeding on police operations in a police vehicle.

C. LIAISON OFFICERS

Specially selected members of the force are trained and appointed by the Commissioner of Police via Force Order as Constabulary Communication Network (CCN) Liaison Officers. These personnel are required to operate out of their divisional headquarters and in accordance with the policy and guidelines of the C.C.N.

Each division is to be assigned two C.C.N. Liaison Officers who will operate exclusively as information officers for that division, in accordance with the job description.

These officers will be equipped to visit the scenes of incidents, attend court and provide up-to-date information on cases reported on by the C.C.N., cover all events happening in their police jurisdiction and report to the C.C.N. Headquarters on a prescribed form at a specified time.

The information provided for the C.C.N. officer will be given to the local Commanding Officer for his knowledge and general information. This should **NOT** however, delay the forwarding of this information to the C.C.N. H.Q.

The C.C.N. Liaison Officers, while officially assigned to their divisions, will operate exclusively as news liaison officers except as otherwise dictated by the Commissioner of Police.

A special dress code has been established for C.C.N. personnel. All members are required to be dressed in the appropriate C.C.N. outfit while on duty.

C.C.N. officers are to be officially rostered for duty at their division alternately between 6:00 a.m. to 6:00 p.m. and 6:00 p.m. to 6:00 a.m., during which time, persons so rostered may either be on call or on duty at the Divisional Head Office.

D. SCENES OF CRIME

1. At scenes of crime or other incidents the police, wherever possible, shall establish a physical cordon around the scene.

The purpose of this barrier is to create a sterile area where evidence important to the investigations, can be preserved from contamination by unauthorized intrusions.

2. When a crime scene or other area of police activity is cordoned, the police may permit news media representatives closer access to the scene than that which may be granted to the general public.
3. This access by the media may be to the perimeter of the cordon. No other person except properly identified to the authorities will be allowed on the perimeter.
4. Entry within the cordoned area normally afforded photographers and television camera crews, shall be on the authority of the officer in charge

investigations/operations in consultation with the C.C.N. liaison officer and will be under escort.

5. Evidence may be covered or removed, witnesses removed, and other Precautions taken by the police to protect the integrity of the investigations prior to Admitting the news media to the scene.
6. If a member of the Force at the scene of an incident has reason to question the Status or actions of any person, who claims to be a news media representative, Instructions should be sought from the C.C.N. Headquarters.
7. The police shall take no action to encourage or dissuade the media in photographing, Televising or recording anything at a scene (subject to 1-4 above).
8. No member of the Force shall in breach of these directives obstruct news media Representatives in carrying out of their professional functions at a scene (subject to 1-5).

DIRECTIVES TO THE MEDIA

SCENES OF CRIME

1. News media representatives shall not enter an area cordoned by the police or otherwise indicated by the police to be a sterile zone, unless authorized.
2. No news media representative shall obstruct the police in the performance of their duties at a scene.
3. News media representatives covering an event shall prominently display their PAJ or company's identification.
4. In conformity with the law no news media representative shall be permitted to interview a person in police custody or take photographs within the precincts of a court.

DRAFT OF ADDITION TO POLICY

Members of the Force are encouraged to display an active interest in matters in the media, particularly those that relate to the police. However, the question of responding to adverse comments in the media concerning the Police Force is general or a member of the Force in particular, merits careful consideration, before any response is made publicly.

In the event of allegations being made against a member in the media, which that member considers to be unfounded or incorrect in part or whole, the member must first consult with his or her Divisional Commander who will seek permission from the officer in charge of the Constabulary Communication Network, Deputy Commissioner or Commissioner of Police, who will assist in coordinating a response if necessary.

TRAFFIC ACCIDENTS

This may be done by providing a brief synopsis of the occurrence. On no account should any such response display any bias for or against any of the parties involved in the accident; nor should the information given to the media ascribe blame to any of the parties.

In the interest of public safety a member at the scene of an incident may wish to extend a public caution based on the circumstances of the particular accident. In such a case it will be necessary to merely state without pointing to any of the parties involved that, for example “excessive speeding could have contributed to this accident...” or “poor judgement in overtaking... etc. and motorists are urged to exercise care on our roads”.

MEDIA REPORT

At least annually, the Commissioner of Police and the Officer in charge of the Constabulary Communication Network meet with representatives of the Jamaica media. This will allow media input and mutual understanding with respect to Force policy and procedure relating to the news media.

PUBLIC OFFICERS AND THE PRESS

1. Public Officers are forbidden to be editors of newspaper or directly or indirectly to take part in the management of newspapers. They may not, without permission of the head of Department or the Minister, contribute to any newspaper in Jamaica or elsewhere on questions which can properly be called political or administrative though they may furnish articles upon subjects of general interest.
2. Any officer, whether on duty or leave of absence, shall not allow himself to be

interviewed on questions of public policy or on matters affecting the defense or military resources of Jamaica.

3. Public Officers shall not make statements to the Press involving policy without the prior permission of the Minister concerned.
4. Statements for publication involving factual or technical information may be made By Heads of Departments and other senior officers if authorized by the Minister concerned.
5. No public officer may without the written approval of the Minister concerned, make public or communicate to the Press or to unauthorized individuals any documents, papers or information which may come into his possession in his official capacity, or make private copies of any such documents or papers.
6. Public Officer are forbidden to give broadcast talks or to engage in any discussion which is being broadcast on any subject which may properly be regarded as of a political nature without the prior permission of the Minister concerned.

A. Guidelines for the Operations of the C.C.N.

1. The department will be manned 24 hours a day.
2. All releases will be headed 'C.C.N. News Release'
3. Releases must be dated.
4. Releases should be issued three times daily at 5:30 a.m., 10:00 a.m. and 4:00 p.m. Or more frequently if necessary.
5. All releases must be approved by the Commissioner of Police, Deputy Commissioner or the officer in charge of the CCN or any other person designated by the Commissioner.
6. A record must be kept of all releases.
7. All written questions from the media and responses by the C.C.N. must be recorded In a register designated for this purpose.
8. Queries of a sensitive nature should be referred to any of the individuals at '5' above.
9. If the facts of any incident enquired about by the media are not immediately

available, the media should be informed of this and efforts made to unearth the facts.